Olengurumwa v Attorney General

[2025] 4 LRC 343

Court: Court of Appeal

Judgment Date: 13/06/2025

Catchwords & Digest

CONSTITUTIONAL LAW - CONSTITUTION – LITIGATION – PUBLIC INTEREST LITIGATION – LOCUS STANDI – LEGISLATION REQUIRING CONSTITUTIONAL PETITIONS TO DEMONSTRATE PERSONAL INTEREST – LEGISLATION REQUIRING PETITIONS TO BE BROUGHT AGAINST ATTORNEY GENERAL – LEGISLATION REQUIRING EXHAUSTION OF ALL OTHER REMEDIES – WHETHER ARTS 26(2) AND 30(3) OF THE CONSTITUTION SIMILAR IN TERMS OF APPLICABILITY OR WHETHER THEY COULD BE ENFORCED THROUGH THE SAME PROCEDURE – WHETHER LEGISLATION CREATING LEGAL IMMUNITY FOR CONSTITUTIONAL OFFICE HOLDERS – WHETHER LEGISLATION CHANGING PUBLIC INTEREST LIGATION TO PERSONAL INTEREST LIGATION – WHETHER REQUIREMENT TO EXHAUST ALL OTHER AVAILABLE REMEDIES UNCONSTITUTIONAL – BASIC RIGHTS AND DUTIES ENFORCEMENT ACT, CAP 3 R.E. 2019, S 4(2), S 4(3), S 4(4) AND S 4(5) – CONSTITUTION OF THE UNITED REPUBLIC OF TANZANIA, ART 26(2) AND ART 30(3). – CONSTITUTIONAL LAW – CONSTITUTION – LITIGATION – STANDARD OF PROOF – STANDARD OF PROOF FOR CONSTITUTIONAL LAW PETITIONS – WHETHER STANDARD OF PROOF BEING B

End of Document